



16017 N. IH 35
PFLUGERVILLE, TX 78660
512-994-2257 Fx:000-000-0000

7:00AM TO 5:00PM
texasfirstrentals.com

Customer: 1027965
TERRAFIRMA INC
12500 NUTTY BROWN RD
AUSTIN, TX 78737

QUOTE

Contract #.. 516431
Contract dt. 9/17/25
Date out.... 9/17/25 8:21 AM
Est return.. 10/15/25 8:21 AM
Job Loc..... 12500 NUTTY BROWN ROAD, AUSTIN
Job No..... 1 - TERRAFIRMA INC
Written by.. TIMOTHY ADLER

COPY
Page: 1

Job Site:
TERRAFIRMA INC
12500 NUTTY BROWN ROAD
AUSTIN, TX 78737

C#: 609-923-2117 J#: 972-816-6228

Ordered By:	Purchase Order Number: NA	Cust Job Ref No.	Terms: Due Upon Receipt
RPP Policy Expiration Date: 8/13/26	Texas First Rentals Sales Rep: TIMOTHY ADLER	Time Printed: 9/17/25 8:23	Delivery Driver Initials:

Qty	Equipment #	Cat-Class	Min	Day	Week	4 Week	Amount
1	4401400	440-1400		1025.00	2775.00	7000.00	7000.00
	50000 LB/22' DEPTH EXCAVATOR						
Rates reflect Single Shift							
SALES ITEMS:							
Qty	Item number	Description	Unit	Price			
1	TERP	TEXAS EMISSION REDUCTION PROGRAM	EA	105.000		105.00	
1	ENV	ENVIRONMENTAL CHARGE	EA	140.000		140.00	
1	HEIT	HEAVY EQUIPMENT INVENTORY TAX	EA	10.500		10.50	
		Sales Tax:				589.05	
							7844.55

CUSTOMER MUST CALL FOR PICK UP AND OBTAIN A PICK UP NUMBER		EQUIPMENT USAGE ALLOWED, 8HRS DAY 40HR WEEK, 160 HRS 4-WEEK, OT WILL APPLY	CUSTOMER IS RESPONSIBLE FOR REFUELING, DAMAGES, REPAIRS OR TIRE REPAIRS
The Loss Damage ("LDW") now called the Rental Protection Plan or "RPP" is not available for all rental transactions. Texas First Rentals may refuse to offer the RPP in its sole discretion. The RPP charge is 15% of the Base Rental installment per month. Rental Protection Plan: Customer Accepts_____ initials Customer Declines_____ initials Statement of Total Charge: for the Optional Rental Protection Plan: If the customer elects to purchase the optional RPP the total estimated charge to the customer under this agreement shall be \$ X _____ CUSTOMER SIGNATURE DATE NAME PRINTED			Remit To: Texas First Rentals LLC P.O. BOX 650869 DALLAS, TX 75265-0869 844-893-4778 Phone/Fax

1201

CONDITIONS OF RENTAL, READ FRONT & REVERSE SIDE

ADDITIONAL TERMS AND CONDITIONS

1. **RENT AND OTHER PAYMENTS:** Customer shall pay Texas First Rentals, LLC, ("TFR") each rental installment on or before each succeeding Payment Date, without demand, deduction or offset. "Customer" is identified on the front side hereof and includes any of its representatives, agents (actual or apparent), officers, or employees and anyone signing this Contract on their behalf. The parties agree that any person signing this agreement has either the actual or apparent authority to obligate Customer to these contractual obligations. If Customer defaults in the payment of any sum of money to be paid under this Agreement, Customer shall pay TFR, as additional rent, interest on such unpaid sum from its due date to the date of payment at the Maximum Rate.
2. **AGREEMENT:** This Agreement becomes binding on TFR only upon TFR's execution of this Agreement. Customer shall inspect the Equipment immediately upon its receipt and shall be conclusively deemed to have accepted the Equipment in good and operating condition unless the Customer promptly notifies TFR of any defects, in writing and via telephone. TFR shall have the right, at its option, to either repair or replace the Equipment, or terminate this Agreement, in which event the Equipment shall be returned to TFR. Delays in delivery shall be excused if caused by any cause beyond the reasonable control of TFR.
3. **TITLE:** Title to the Equipment shall at all times remain in TFR. Customer, at its expenses, shall protect and defend the title of TFR and keep it free of all claims and liens. All replacements, repairs, improvements, alterations, substitutions and additions shall constitute accessions to the Equipment and title thereto shall vest in TFR, at all times the Equipment will remain the personal property of TFR.
4. **LOCATION OF EQUIPMENT:** Customer shall not remove the Equipment from the location set forth on the front page of this Agreement, without TFR's written consent. Customer represents that the Equipment will not be affixed to any real estate or other goods so as to become fixtures on such real estate or accessions to other goods.
5. **USE:** Customer agrees that TFR has no control over the manner in which the equipment is operated during the Rental Period by Customer or any third party that Customer implicitly or explicitly permits. Customer warrants that: (1) prior to each use, Customer has or will inspect the Equipment to confirm that it is in good working condition, without defects, includes readable decals and operating and safety instructions and is suitable for Customer's intended use; (2) any apparent agent at the location listed by Customer for delivery is authorized to accept delivery of the Equipment; (3) The Equipment will at all times be used and operated solely in the conduct of Customer's business and not for personal, family or household use, and in accordance with the operation, use and/or instructional materials supplied to Customer; (4) Customer will comply with all applicable laws, acts, rules, regulations and orders affecting the Equipment or use thereof and shall be responsible for obtaining all authorizations, licenses, and certifications to operate the Equipment; (5) the Equipment will be used solely for the purpose for which it was designed and intended, and will not be abused; and (6) Customer will only allow skilled operators trained in use of the Equipment to operate the Equipment. Customer shall operate the Equipment with reasonable care and diligence and use reasonable precautions to prevent loss, damage, or injury; (7) Customer will notify TFR as quickly as possible if owner/user's manual is not provided with machine. TFR hereby disclaims any liability related to the use of the machine by Customer if Customer fails to notify TFR that the owners/users' manual was not provided prior to Customer's use of the machine.
6. **REPAIRS AND MAINTENANCE:** Except for repair costs covered by an express TFR or manufacturer warranty, if any, Customer, at its expense shall: (1) keep the Equipment in good working order, (2) pay all costs, expenses, fees and charges incurred in connection with the use or operation of the Equipment including, but not limited to maintenance, storage and servicing, and pay TFR, upon demand, its regular charges for any parts or labor furnished in making any repairs. Customer's maintenance obligations shall include, but not be limited to, the performance of all daily maintenance recommended in applicable manufacturer operation, lubrication and/or maintenance guides ("Daily Maintenance"). In connection with the performance of Daily Maintenance, Customer shall (i) be responsible for all cleaning of the Equipment as required for maintenance, including but not limited to removal of brush or debris from undercarriage, belly pans, radiator and engine compartment; (ii) be responsible for notifying TFR of any unusual noises or problems with respect to the Equipment; and (iii) be responsible for making the Equipment available for maintenance and inspection by TFR. The parties further agree that the Customer shall not provide any repairs to the equipment without the prior written approval of TFR's legal department.
7. **Taxes:** Customer shall pay all taxes, fees, assessments and other governmental charges of any kind or character on or relating to the Equipment.
8. **LOSS AND DAMAGE:** Customer assumes all risk of, and shall be solely responsible for, all damage and loss to the Equipment from any cause whatsoever, whether or not such loss or damage was or was not the result of Customer's negligence or lack of care, or could have been covered by insurance. The Agreement shall not terminate and there shall be no abatement, reduction, suspension or deferment of Rental Installments for any reason, including damage to or loss of the Equipment. Customer shall promptly give TFR written and telephone notice of any loss or damage, describing in detail the cause and the extent of such loss or damage. Customer shall notify appropriate law enforcement authorities within two (2) hours of discovery of theft or vandalism. TFR shall not be liable and Customer waives any claim it might have (i) for injury to Customer's business or any loss of income therefrom; (ii) for damage to the property of Customer, or (iii) for injury to the person of Customer or Customer's agents, representatives and employees or caused in any way by the Equipment. TFR will not be responsible for sums spent by customer in an attempt to recover the rented machine. Customer should immediately contact TFR and TFR will attempt to recover the machine.
9. **INDEMNITY: TO THE FULLEST EXTENT PERMITTED BY LAW, CUSTOMER INDEMNIFIES, RELEASES AND HOLDS TFR HARMLESS, AND AT TFR'S REQUEST, DEFENDS TFR (WITH COUNSEL APPROVED BY TFR) ITS PARTNERS, EMPLOYEES, AGENTS, REPRESENTATIVES, SUCCESSORS FROM AND AGAINST ANY AND ALL CLAIM, EXPENSE, CAUSE OF ACTION, DAMAGE, LIABILITY, COST, PENALTY, TAX, ASSESSMENT, CHARGE, PUNITIVE DAMAGE OR EXPENSE BY REASON OF ANY ACT OR OMISSION OF CUSTOMER OR ITS EMPLOYEES, AGENTS, CONTRACTORS, SUBCONTRACTORS, AFFILIATES OR INVITEES.**
10. **Insurance:** Customer agrees to provide TFR with a certificate of insurance providing evidence of these coverages: Equipment Insurance with TFR listed as Loss Payee, General Liability and Automobile Liability, each with limits of at least \$1,000,000 Per Occurrence, with TFR as Additional Insured, and with Waivers of Subrogation in favor of TFR, Workers Compensation including Employer's Liability with limits of at least \$1,000,000 and with Waiver of Subrogation in favor of TFR.
11. **Rental Protection Plan:** This Contract offers an optional loss damage waiver now termed "Rental Protection Plan" for an additional charge to cover your responsibility for the loss or damage to the heavy Equipment. You do not have to purchase this coverage. Before deciding whether to purchase this loss damage waiver, you may consider whether your insurance policies afford you coverage for loss of or damage to the heavy Equipment rented and the amount of the deductible you would pay under your policies. Please be advised that all the terms and conditions applicable to the Rental Protection Plan can be found at <https://texasfirstrentals.com/rpp>. Customer hereby understands and warrants that it will visit such site to acquaint themselves with how the coverage works as well as what types of damages and losses are covered or excluded under the plan (including the negligence of the Customer).
12. **ASSIGNMENT AND SUBLEASE:** TFR may assign any of its rights and obligations hereunder without notice, including, but not limited to, assignment of the TFR equipment sale and/or trade-in purchase rights under this Agreement, if converted to a sale or trade-in purchase, to CADT Exchange Services, Inc. ("CADT"). No assignee of TFR, including CADT, as qualified intermediary or the assignee's officers, directors, agents, or employees, shall be obligated to perform any covenant, condition or obligation required to be performed by TFR hereunder. However, in the event any assignee agrees to assume the obligations of TFR, Customer agrees that TFR shall be released from all further liability hereunder. Neither this Agreement nor any of Customer's rights hereunder shall be assignable by Customer without the prior written consent of TFR. Customer agrees it will not rent or sublease any Equipment to others, without the prior written consent of a TFR manager. Customer shall ensure that its sub-lessees comply with all obligations of Customer in this Agreement.
13. **EVENTS OF DEFAULT:** Each of the following is an event of default under this Agreement: (1) Customer's failure to pay any Rental Installment or other sum payable to TFR or any affiliate of TFR when due, whether such indebtedness arises hereunder or otherwise; (2) Customer's ceasing to do business as a going concern, becoming insolvent, taking advantage of any law for the relief of debtors, making an assignment for the benefit of creditors or a filing under the U. S. Bankruptcy Code by or against Customer; (3) TFR deems the Equipment in jeopardy or feels insecure with respect to: Customer's continued ability to make payments or, the value of the Equipment; or (4) Customer fails to perform any other obligation imposed on Customer under this or any other TFR Agreement.
14. **REMEDIES ON DEFAULT:** In the event of any default by Customer, TFR is entitled to any one or more of the following remedies, without any notice of default: (a) take possession of the Equipment or any other equipment, including enter premises where it's located; (b) terminate this Agreement; (c) seek specific performance or injunction or recover damages; (d) stop delivery of the Equipment or any other equipment; (e) without terminating this Agreement, TFR may take possession of the Equipment and sell, relet or otherwise dispose of the Equipment as a secured party under UCC and deduct all expenses, costs, reasonable attorney's fees, and other charges incurred by TFR; (f) Recover deficiency from Customer; and/or (g) perform by itself, or cause performance of, Customer's obligation, at Customer's cost. In no event shall TFR be required to sell or relet the Equipment, nor required to rebate or pay back any gain or profit as a result of leasing the Equipment. TFR's remedies hereunder shall not be exclusive, but shall be cumulative and in addition to all other remedies existing at law or in equity.
15. **RETURN:** Upon the expiration or earlier termination of this Agreement, Customer shall promptly return the Equipment to TFR free and clear of all mortgages, liens, security interests, charges, encumbrances and claims, and in the same operating order, repair, condition and appearance as when received, ordinary wear and tear excepted. Customer shall make such return at its expense and risk, freight and insurance prepaid, to the destination specified by TFR. In the event Customer remains in possession of the Equipment after the expiration or earlier termination hereof, Customer shall be a Lessee at Will, and all terms and conditions of the Agreement shall continue in full force and effect. If Equipment is returned dirty or damaged, Customer shall be responsible for excess cleaning and repair charges in an amount determined by TFR.
16. **CUSTOMER'S WARRANTIES:** In addition to the other warranties contained herein, Customer warrants to TFR that (i) if Customer is a corporation, limited liability company or limited partnership, Customer is duly organized and validly existing in good standing under the laws of the state in which it is organized and has duly authorized the execution, delivery and performance of this Agreement; and (ii) the Agreement has been duly and validly executed and delivered by Customer and constitutes a valid contract which is fully enforceable against Customer according to its terms.
17. **NOTICES:** All notices hereunder shall be in writing and shall be deemed delivered if delivered personally or mailed, by certified mail, return receipt requested, to the respective addresses of the parties set forth above or any other address designated by written notice.
18. **USURY:** This Agreement is a lease, and not a financing agreement or arrangement. However, if this Agreement shall ever be determined to be a financing agreement or arrangement involving the loan of monies, this paragraph shall apply. If being the intention of the parties to strictly conform to the applicable usury laws, all agreements between the Customer and TFR, whether now existing or hereafter arising and whether written or oral are hereby expressly limited so that in no event, whether by reason of acceleration of the maturity of the obligations secured hereby or otherwise, shall the amount paid or agreed to be paid to TFR for the use, forbearance, or detention of money hereunder or otherwise, exceed the maximum amount permissible under applicable law. If fulfillment of any provision or of any document evidencing or securing the obligations secured hereby shall involve exceeding the limits prescribed by law, then the obligation to be fulfilled shall be reduced to the legal limit; and if TFR shall ever receive anything of value deemed interest under applicable law which would exceed interest at the highest lawful rate, an amount equal to any excessive interest shall be applied to the reduction of the principal amount owing hereunder and not to the payment of interest, or if such excessive interest exceeds the unpaid balance of principal hereof, such excess shall be refunded to the Customer. All sums paid or agreed to be paid to TFR for the use, forbearance, or detention of the indebtedness of the Customer to TFR hereof shall, to the extent permitted by applicable law, be amortized, prorated, allocated, and spread throughout the full stated term of such indebtedness so that the rate of interest on account of such indebtedness is uniform throughout the term thereof.
19. **MAXIMUM RATE:** "Maximum Rate" shall be the lesser of: 1) 1.5% per month (18% per annum); or 2) the highest non-usurious rate of interest allowed by Texas law.
20. **MISCELLANEOUS:** This Agreement may only be modified by a written agreement signed by TFR but not to include a Customer's purchase order. Any terms in Customer's acceptance, purchase order or other documentation that are inconsistent with, or in addition to this Agreement (except such additional terms which are required by law) shall be void and of no effect (any use or reference to Customer's purchase order or purchase number in any Rental Contract is for Customer's convenience only). If any provision of this Agreement is hereafter held invalid or unenforceable, the remainder of the Agreement shall not be affected, and the provisions are declared severable. If there is more than one Customer, the obligations of Customers hereunder are joint and several. Subject to the terms hereof, this Agreement shall be binding upon and inure to the benefit of TFR and Customer and their respective personal representatives, successors and assigns. This Agreement shall be governed by the laws of Texas; each party hereby irrevocably consents to submit to the exclusive jurisdiction of the courts of the state of Texas in Bexar County, Texas.
21. **Fees:** (1) TFR imposes a fixed rate fuel surcharge on all invoices. The fuel surcharge is intended to defray rising delivery and operating vehicle costs, including, but not limited to: vehicle standing costs, running costs, depreciation, etc. TFR can change the amount of the fuel surcharge from time to time in its sole discretion without prior notice. (2) Where permitted by law, TFR may impose a surcharge of 2.0% for credit card payments made on credit accounts. The surcharge imposed by TFR is not greater than our cost of acceptance.
22. **Telematics data** is being collected and transmitted to Caterpillar Inc. to be used per the Caterpillar Data Governance statement and Caterpillar for remote services process. To learn more visit <https://www.caterpillar.com/en/legal/notices/data-governance-statement.html>.
23. Customer acknowledges that Caterpillar Inc. and its subsidiaries and affiliated entities (collectively, "Caterpillar") and TFR each collect, use, retain, disclose, and otherwise process personal information for, among other purposes, providing information about warranty, customer marketing and promotional material about Caterpillar and/or Dealer products or services. Caterpillar's Global Data Privacy Statement (GDPS) is available at <https://www.caterpillar.com/dataprivacy>. TFR's privacy statement is available at: <https://www.holtcat.com/privacy>. TFR and Caterpillar may share or disclose said personal information with the other. TFR may also share personal, product and other types of information with other third parties for business related purposes. Customer agrees that nothing contained herein impacts any authorization or consent previously provided to Caterpillar or TFR.
24. Right to a jury trial is hereby waived by all parties.
25. **ARBITRATION:** Parties agree to submit to binding arbitration for any dispute arising out of or relating to this transaction. Either party may initiate arbitration which shall be conducted in accordance with commercial arbitration rules of the American Arbitration Association, in San Antonio, Bexar County, Texas. The customer agrees that it shall not be a breach of this agreement if either party files suit in Bexar County District Courts, as the obligation to arbitrate is not triggered until either party explicitly initiates arbitration. The expenses of the arbitrator(s) shall be borne (or reimbursed, as applicable) by the non-prevailing party, and the prevailing party shall be entitled to recover its attorney fees and costs against the non-prevailing party.